

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

HAPAG-LLOYD, A.G. AND HAPAG-LLOYD (AMERICA) LLC –
POSSIBLE VIOLATIONS OF 46 U.S.C. § 41102(C)

DOCKET NO. 21-09

Served: February 17, 2022

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge*.

ORDER ENTERING PROTECTIVE ORDER AS MODIFIED

On February 14, 2022, the parties filed a protective order, signed by both parties and with a blank signature line for the undersigned. No motion or other information was provided by the parties. The filing will be treated as a motion requesting approval of the proposed protective order. As explained below, the protective order will be accepted as modified below.

The initial order issued in this proceeding includes a section directly addressing confidential material which states:

18. *Stipulation* – The parties may agree and stipulate between themselves regarding treatment of confidential documents and information obtained during discovery that is not filed with the Commission. The parties may, but are not required to, file a courtesy copy of the agreement with the Commission.
19. *Use in the proceeding* – If confidential information is filed in a memorandum or as an exhibit to a dispositive motion or as part of briefing on the merits, it must be accompanied by a motion justifying confidential treatment. This motion must identify each item for which protection is sought and show good cause by demonstrating that the information is a trade secret or other confidential research, development, or commercial information. 46 C.F.R. § 502.141(j)(1). The burden is on the party seeking to protect the information to show good cause for its protection.
20. *Filing* – Parties should file two versions of confidential filings marked as the “confidential version” and the “public version.” The confidential version may be provided to the Presiding Officer by email but should not be filed with the Office of the Secretary by email pursuant to Commission Rule 5.^[1] 46 C.F.R. § 502.5.

¹ The Commission has temporarily waived certain requirements related to the paper filing of documents. Order (May 12, 2020), Docket No. 20-07.

21. *Marking confidential material* – In the confidential version, confidential information must be conspicuously and clearly marked on each page, for example by highlighting or braces. The public version must indicate on the cover page and on each affected page “Public version – confidential materials excluded.” The public version must clearly indicate any omissions, for example with blackout or braces, and its pagination and depiction of text on each page must be identical to that of the confidential version. For example, the confidential filing may read: “On January 1, 2010, Complainant entered into a {25} year lease with respondent for a monthly rent of {\$1000}.” The public version would read: “On January 1, 2010, Complainant entered into a { } year lease with Respondent for a monthly rent of { }.”
22. *Exhibits* – Confidential information in exhibits should be marked as above. If marking within the text is not feasible, individual pages may be replaced in the public version with a page indicating that confidential material was excluded. Entire exhibits should not be excluded, only those pages containing confidential material.
23. *Personal information* – Personally identifiable information such as social security numbers, birth dates, and financial account numbers must be redacted pursuant to Commission Rule 13. 46 C.F.R. § 502.13.

Initial Order at 5.

Some sections of the proposed protective order are unclear and other sections appear to alter Commission rules or exceed the authority of the undersigned. For example, confidential materials that are filed before the undersigned will also be available to other offices at the Commission. In addition, the undersigned does not have authority to rule on issues in this proceeding once the initial decision is issued and that cannot be changed by agreement of the parties.

Parties may designate discovery between themselves as confidential even if that discovery would not be covered by Commission rules. However, once materials are filed with the Commission as part of the proceeding, the requirements of the initial order, repeated above, are controlling. To avoid over-designation, it is suggested that confidential material be covered in a specific section of depositions, for example at the end of the deposition. In general, the entire contents of a deposition transcript will not be entitled to confidential treatment under Commission rules. There is a public interest in keeping administrative adjudication records available to the public to ensure the integrity of the process and to provide guidance to the public. See *Matson Navigation Company, Inc. Proposed General Rate Increase of 3.6 Percent Between United States Pacific Coast Ports and Hawaii Ports*, Docket 90-09, 1990 FMC LEXIS 49 (ALJ Aug. 9, 1990), *partially adopted*, 1990 FMC LEXIS 11 (FMC Oct. 29, 1990).

Accordingly, the following modification are hereby made to the proposed Protective Order.

Paragraph 4(a): “or” is changed to “and.”

Paragraph 5: This paragraph is changed to read: “All Confidential Material which is filed with the ALJ or FMC, or materials containing, reproducing, incorporating or paraphrasing Confidential Material, shall comply with Commission procedures, including 46 C.F.R. § 502.5 and the Initial Order.”

Paragraph 9: delete “or further order of the ALJ.”

The parties have established good cause to enter the protective order as modified. Accordingly, the implied motion is **GRANTED**, and it is hereby **ORDERED** that the Protective Order as modified by this order shall be entered as an order in this proceeding.


Erin M. Wirth
Chief Administrative Law Judge